

25VECV01586 25VECV01586

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-09-03

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Case Number: 25VECV01586 Hearing Date: September 3, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

CHRISTOPHER
CONTRERAS, an individual,

Plaintiff,

vs.

FCA US, LLC; RYDELL CHRYSLER DODGE JEEP
RAM; and DOES 1-10, inclusive,

Defendants.

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CASE NO: 25VECV01586

[TENTATIVE] RULING RE: PLAINTIFF'S
MOTION TO COMPEL INITIAL DISCLOSURES

Dept. U

8:30 a.m.

September 4, 2026

A. BACKGROUND

This case is a lemon law action.

On March 20, 2025, Plaintiff Christopher Contreras ("Plaintiff") filed his complaint against Defendants FCA US, LLC ("FCA") and Rydell Chrysler Dodge Jeep Ram ("Rydell").

On November 14, 2025, Plaintiff filed his first amended complaint (the "FAC") against Defendants, alleging: (1) violation of Civil Code section 1793.2 (d) against FCA; (2) violation of Civil Code section 1793.2 (b) against FCA; (3) violation of Civil Code section 1793.2 (a)(3) against FCA; (4) breach of the implied warranty of merchantability in violation of Civil Code sections 1791.1, 1794, and 1795.5 against FCA; (5) negligent repair against Rydell; and (6) fraudulent inducement-concealment

against FCA.

On December 16, 2025, Rydell filed its answer to the FAC.

On June 15, 2026, Plaintiff filed the instant motion to compel initial disclosures under Code of Civil Procedure section 871.26.

On August 28, 2026, Plaintiff filed a notice of FCA's non-opposition to Plaintiff's motion to compel initial disclosures.

On August 31, 2026, FCA filed a late opposition.

As of 5:00 P.M. on September 1, 2026, nothing further had been filed in this matter by any party.

B. RULING

The motion is denied.

C. LEGAL STANDARD

"Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." Code Civ. Proc., § 871.26 (b).

D. DISCUSSION

Plaintiff moves to compel initial disclosures under Code of Civil Procedure section 871.26.

As a preliminary matter, FCA's opposition was untimely filed. However, the Court exercises its discretion to consider the opposition on the merits.

Plaintiff argues FCA was required to provide all mandatory initial disclosures and documents within 60 days of July 21, 2025, the date FCA's Demurrer was served. (Mot., p. 5.) Plaintiff contends FCA has failed to provide complete, verified, and unfiltered disclosures.

Plaintiff's attorney's declaration concedes that FCA already provided initial disclosures. Plaintiff's found those disclosures deficient. (See Rucker Decl., ¶ 4.) FCA served its demurrer on July 21, 2025, making the initial disclosures due September 19, 2025. (Mot., p. 5.)

FCA states it timely served its initial production on September 19, 2025, producing over 1,000 pages of materials such as warranty claims records, repair orders, sales brochures, vehicle information detail report, glove box documents, the Monroney label, TSBS, and recalls applicable to the subject vehicle. (Wang Decl., ¶ 8.)

The cited statute provides no mechanism for trial court intervention where the demanding party takes the position that initial disclosures are insufficient. There is no provision stating that a party may move to compel initial disclosures, let alone that a party may move to compel further disclosures. While the statute provides for sanctions under subsection (j), that provision of the statute is most naturally read to mean that sanctions shall apply where no initial disclosures are provided whatsoever. Where, as here, there is a dispute as to the sufficiency of initial disclosures, there is no statutory mechanism for the trial court to evaluate the sufficiency of disclosures to determine whether sanctions should apply.

Further, Plaintiff argues FCA has not provided written responses accompanied by verification. (Mot., p. 6.) However, section 871.26 does not contain a verification requirement. Regardless, in its opposition, FCA submitted the written initial responses as Exhibit C, which include a verification by James A. Sheridan, under penalty of perjury.

The
motion is denied. No sanctions will
issue.

E. CONCLUSION

The Court DENIES Plaintiff's motion
to compel initial disclosures.

The Clerk is ORDERED to give
notice.

DATED: September 4, 2026

Lee
S. Arian

Judge of the
Superior Court